



CHAPTER cxii.

An Act to confirm an agreement between the Highland Railway Company and the Invergarry and Fort Augustus Railway Company to enable the Highland Railway Company to erect and maintain a hotel at Dornoch to apply their capital thereto and for other purposes. A.D. 1903.

[21st July 1903.]

WHEREAS by the Invergarry and Fort Augustus Railway Act 1896 (hereinafter called "the Act of 1896") the Invergarry and Fort Augustus Railway Company (hereinafter called "the Invergarry Company") were incorporated and authorised to make the railway and pier therein described in the county of Inverness:

And whereas further powers were conferred upon the Invergarry Company by the Invergarry and Fort Augustus Railway Act 1897:

And whereas the Invergarry Company have constructed the railway and pier by the Act of 1896 authorised:

And whereas an agreement has been entered into between the Highland Railway Company (hereinafter called "the Highland Company") and the Invergarry Company which is set forth in the Schedule to this Act and it is expedient that such agreement should be confirmed:

And whereas it is expedient to authorise the Highland Company to erect and maintain a hotel at Dornoch and to apply their capital to that purpose:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

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A.D. 1903. with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Highland and Invergarry and Fort Augustus Railway Companies Act 1903.

Confirming agreement. 2. The agreement between the Highland Company of the first part and the Invergarry Company of the second part dated the fifth and sixth days of March one thousand nine hundred and two as set forth in the Schedule to this Act is hereby confirmed and shall be carried into effect by the Highland Company and the Invergarry Company respectively.

Power to Highland Company to erect hotel at Dornoch. 3. The Highland Company may build provide and maintain as part of their undertaking a hotel in the burgh of Dornoch and county of Sutherland and may furnish stock equip manage and conduct the same and the business thereof and may employ officers managers and servants therein or in connection therewith and they may from time to time lease the same to any person for a term of years or otherwise and the Highland Company may apply their corporate funds for those purposes or any of them but so that capital shall be applied only to purposes to which capital is properly applicable.

Amendment of section 17 of Highland Railway Act 1865. 4. Section 17 (Power to close transfer books at certain periods) of the Highland Railway Act 1865 shall be read and have effect as if the word "ordinary" were substituted for the word "extraordinary" where it occurs in that section.

Saving for Postmaster-General. 5. Nothing in this Act or in the agreement set forth in the Schedule to this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertaking of the Invergarry Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertaking of the Invergarry Company is worked by the Highland Railway Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

Extending provisions of sections 25 6. Sections 25 and 26 of the Highland Railway (Northern Lines Amalgamation) Act 1884 shall during the continuance of the

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working agreement scheduled to and confirmed by this Act apply to the railway of the Invergarry Company and for all purposes of those sections the undertaking of the Invergarry Company shall be and be taken to be comprised in the expression "the Highland Railway."

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and 26 of Act of 1884 to railway of Invergarry Company.

7. Nothing in this Act contained shall prejudice or affect any questions that may arise in connection with any application that may hereafter be made to Parliament for powers to construct a railway from Fort Augustus to Inverness.

Saving as to future applications to Parliament.

8. Nothing in this Act contained shall exempt either of the Companies named in this Act or the railways of such Companies from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by either of the Companies.

Provision as to general Railway Acts.

9. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Highland Company and the Invergarry Company in equal proportions.

Costs of Act.

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SCHEDULE referred to in the foregoing Act.

THIS AGREEMENT entered into between the HIGHLAND RAILWAY COMPANY incorporated by Act of Parliament (hereinafter called "the Working Company") of the first part and the INVERGARRY AND FORT AUGUSTUS RAILWAY COMPANY incorporated by Act of Parliament (hereinafter called "the Owing Company") of the second part for the working and maintaining of the Invergarry and Fort Augustus Railway—

WITNESSETH that whereas the Owing Company have constructed the railway authorised by the Invergarry and Fort Augustus Railway Act 1896 commencing by a junction with the West Highland Railway near Spean Bridge Station and terminating at or near Fort Augustus and also the pier at Loch Ness authorised by the said Act which railway and relative works and pier are all hereinafter included in the expression and referred to as "the railway":

And whereas the Working Company have agreed to enter into the agreement hereinafter written for the working and maintenance of the railway Therefore the parties hereto have agreed and do hereby agree with each other in manner following (that is to say):—

First The Owing Company undertakes before the operation of this agreement to put the railway into good working order to the satisfaction of the Board of Trade and to procure such modifications of the special conditions contained in section 32 of their said Act of 1896 as will enable the Working Company to work the railway on the Annetts Key principle throughout if that system of working the railway should be approved of by the Board of Trade.

Second The Owing Company agrees to the Working Company working and maintaining and the Working Company undertakes to work and maintain the railway as a single engine railway (but having always at hand at least one engine in reserve) for a period of ten years from the first day of May nineteen hundred and two to the thirtieth day of April nineteen hundred and twelve both days inclusive or from the date of the opening of the railway for traffic if that date should be later than the first day of May next.

Third The Working Company shall provide the whole of the locomotive power rolling stock and plant of every description necessary suitable and sufficient for effectually working the whole traffic and they shall have the power of selecting appointing suspending and dismissing all officers and servants required by them in working and maintaining the railway and the said officers and servants shall be under the exclusive control of the Working Company and shall be paid by the Working Company.

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Fourth The Working Company shall have absolute discretion in regard to the manner of working the railway under this condition that they shall work the traffic from to and on the railway so as fairly to develop said traffic and shall subject to the provisions of Article Second hereof that the railway shall be worked as a single engine railway only run during the months of July August and September four passenger or mixed trains each way between Spean Bridge and Fort Augustus to connect with the trains on the West Highland Railway and the steamers plying on Loch Ness at their respective times of arrival and departure and for the remainder of the year the Working Company shall run two passenger or mixed trains each way over the railway timed to arrive and depart from Spean Bridge and Fort Augustus to connect with the West Highland Railway trains and the steamers plying on Loch Ness at their respective times of arrival and departure The timing of the stated trains upon the railway shall be fixed by the Owing Company and if in the opinion of the Owing Company extra service in excess of the maximum herein stated is required or necessary for the proper working of the traffic during any part of the year except the months of July August and September the Working Company shall provide such extra service for which they will be entitled to retain out of the monies received by them in respect of trains carrying passengers or mixed trains one shilling per train mile over and above the fixed charge for working and maintenance hereinafter stated Declaring however that the above sum of one shilling per train mile shall not be chargeable in respect of such extra trains when returning empty Declaring further that any special train ordered by any individual or individuals for his or their personal convenience shall not be included in such extra service.

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Fifth The Working Company shall in the first instance fix the fares rates tolls and charges for and in respect of all traffic using the railway or any part thereof but the Owing Company shall at all times have the right to alter any such fares rates tolls and charges.

Sixth The Working Company shall collect and receive in the first instance all such fares rates tolls and charges for and in respect of the whole traffic of the railway hereinafter referred to as the "gross revenues" and account as hereinafter mentioned to the Owing Company for the same after deduction of the sums due for working and maintaining the line as hereinafter provided.

Seventh Returns of all traffic falling within this agreement in so far as the Owing Company are interested therein shall be rendered by the Working Company to the Owing Company monthly and payment of the proportion of the monies received from such traffic due and payable to the Owing Company shall be paid over by the Working Company to the Owing Company half-yearly within two months from the end of each half-year ending thirty-first July and thirty-first January Declaring however that should any deficiency arise in the sum payable to the Working Company in terms of this agreement in any half-year ending thirty-first July the said deficiency shall be carried forward to the following half-year and charged

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Eighth. The gross revenues of the railway shall be held to consist of (1) all receipts including terminals in respect of traffic but excluding cost of cartage where incurred (2) the mileage proportion according to the regulations of the Railway Clearing House of all receipts arising from through traffic (3) the terminals falling to the Owing Company in respect of through traffic. All other incidental receipts such as rents of surplus lands and houses other than the houses mentioned in the schedule annexed and signed as relative hereto advertisements grass slopes and all other revenues of the Owing Company arising from or connected with their undertaking shall belong to and be collected by the Owing Company.

Ninth. For the services rendered by the Working Company in working and maintaining the railway as herein provided they shall be entitled to retain from the gross revenues of the railway the sum of two thousand pounds sterling per half-year and any deficiency in any half-year ending thirty-first July shall be carried to the debit of the following half-year as hereinbefore provided under Article Seventh hereof but no interest shall accrue on any adverse balance made up in this way. Declaring that in case the gross receipts in any year ending thirty-first January shall fall short of the sum to be paid to the Working Company for working and maintenance (except the period from the opening of the railway till the thirty-first January nineteen hundred and three which shall be dealt with as part of a year only as hereinafter mentioned) it shall be optional to the Working Company to terminate this agreement and to recover any arrears due to them for working and maintenance from the Owing Company without interest accruing thereon but such arrears shall only be recoverable for any one year ending thirty-first January and shall not be cumulative. Declaring further that the Working Company shall be bound to give to the Owing Company at least six months notice of their intention to terminate this agreement in terms of this article and in the event of the Working Company not terminating this agreement in terms of this article then the Working Company shall have no claim against the Owing Company and shall not be entitled to recover from the Owing Company any arrears due to them for working and maintenance in terms of this article. For the period from the opening of the railway till thirty-first January nineteen hundred and three the Working Company shall be entitled to retain from the gross revenues of the railway only such part of the annual sum of four thousand pounds sterling payable to them under this article as is proportionate to the length of such period.

Tenth. The maintenance undertaken by the Working Company shall be ordinary maintenance only and the Owing Company shall at their own cost for a period of six years from and after the opening of the railway for traffic

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make good any defects in the original construction of the railway and any damage clearly arising from floods and landslips and after the expiry of the said period of six years the Working Company shall until the expiry of this agreement undertake the whole maintenance of the railway ordinary and extraordinary Declaring that the Working Company shall maintain the railway in a workmanlike manner so as to leave the same in a good and sufficient state of repair at the termination of this agreement ordinary tear and wear excepted. A.D. 1903.

Eleventh The Working Company shall pay the rent of Spean Bridge Station belonging to the West Highland Railway Company the proportion of expense of the joint staff there all rates and taxes Clearing House expenses Government duty insurance on property under their control and liability for accidents under the Workmen's Compensation Act Declaring that in the event of any such property being damaged or destroyed by fire the same shall be renewed or rebuilt by the Working Company The Owing Company shall pay all feu-duties ground annuals rents or other payments of that nature in respect of lands feued or leased by them insurance of property not under the control of the Working Company any payments or liabilities coming under sections 31 32 and 33 of the said Invergarry and Fort Augustus Railway Act 1896 directorial expenses and the expenses of maintaining the financial management staff of the undertaking.

Twelfth At the termination of this agreement the Owing Company shall take over from the Working Company at a valuation made by an arbiter appointed under the provisions of Article Thirteen hereof the whole stock of permanent way material tools tickets stationery movable weighing machines and general stores provided and then on hand for the working and maintenance of the railway.

Thirteenth All questions and disputes which may arise between the parties hereto in relation to this Agreement or to the scope intent or meaning thereof or to the carrying out of the same or as to the liabilities of either party for the maintenance of the railway shall be determined by an arbiter to be mutually chosen by the parties hereto and failing their agreeing by an arbiter to be appointed by the Board of Trade on the application of either of the parties.

Lastly The agreement shall be binding on the parties when it has been approved of by the shareholders of the two Companies and also sanctioned by Parliament The expense of obtaining parliamentary sanction and any expenses incurred in obtaining the use of the station and staff at Spean Bridge shall be borne by the parties equally and both parties undertake to use their best endeavours to obtain parliamentary confirmation hereto Should any alteration be made on the agreement by Parliament which in the opinion of the Lord Advocate for Scotland for the time being is material thereto either of the parties may withdraw therefrom.

In witness whereof these presents printed on this and the four preceding pages are (together with the Schedule of Houses annexed hereto) subscribed in duplicate as follows namely By William Whitelaw and Donald Grant two

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A. D. 1903. of the directors and Robert Park secretary all of and for and on behalf of the said the Highland Railway Company and sealed with the common seal of said Company all at Inverness on the fifth day of March in the year nineteen hundred and two before these witnesses William Grant and William Nicolson both clerks to the said the Highland Railway Company at Inverness and by the Right Honourable Lord Burton and John Charles Cuninghame two of the directors and David Reid secretary all of and for and on behalf of the said the Invergarry and Fort Augustus Railway Company and sealed with the common seal of the said Company all at London on the sixth day of the month and year last mentioned as follows namely by the said the Right Honourable Lord Burton before these witnesses Sir William Chichele Plowden Knight Commander of the Star of India residing at Aston Rowant Oxon and George Upward valet to the said Lord Burton and by the said John Charles Cuninghame and David Reid and sealed with the common seal of the said Company before these witnesses Arthur Salter clerk and Charles Groegori waiter both at the Westminster Palace Hotel Westminster London.

WM. GRANT Witness.
W. NICOLSON Witness.



WILLIAM WHITELAW Director.
DON. GRANT Director.
ROBERT PARK Secretary.

W. C. PLOWDEN Witness.
G. UPWARD Witness.
ARTHUR SALTER Witness.
CHARLES GROEGORI
Witness.



BURTON.
J. C. CUNINGHAME Director.
DAVID REID Secy.

SCHEDULE of Houses within referred to.

Gairloch Station at two miles sixty chains—

Station-master's house—three rooms and kitchen.

Gairloch Station at three miles—

Double house for surfacemen.

Letterfinlay passing-place at eight miles—

Two room and kitchen house intended for signalman.

Altrua at nine miles—

Double house for surfacemen.

Laggan at fourteen miles—

Double house for surfacemen.

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Invergarry at fifteen miles—

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Station-master's house—three rooms and kitchen.

Aberchalder at nineteen miles forty chains—

Double house for surfacemen.

Pier at twenty-four miles—

Two room and kitchen house.



WILLIAM WHITELOW Director.
DON. GRANT Director.
ROBERT PARK Secretary.



BURTON.
J. C. CUNINGHAME Director.
DAVID REID Secretary.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.

THE UNITED STATES OF AMERICA
BUREAU OF THE CENSUS

DEPARTMENT OF COMMERCE
WASHINGTON, D. C.

1910

POPULATION

TABLE 1
POPULATION
BY SEX AND COLOR

1910

1910